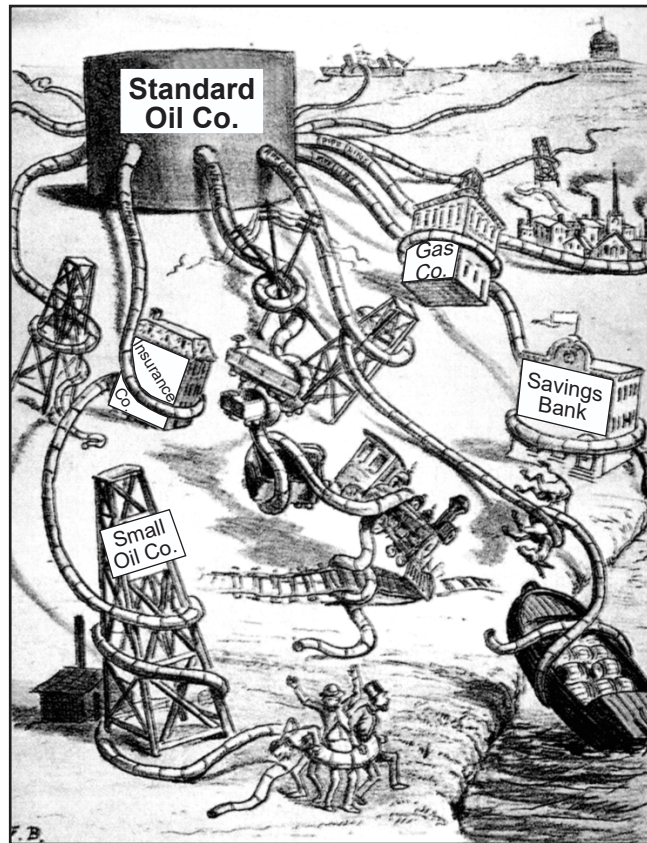


**United States History and Government
Content-Specific Rubric (Questions 31-36)
Civic Literacy Essay Question (Question 37)
August 2025**

Go on to the next page ➡

Document 1a



Source: Frank Beard, *The Judge*, July 19, 1884 (adapted)

Document 1b

. . . In my Message to the present Congress at its first session I discussed at length the question of the regulation of those big corporations commonly doing an interstate business, often with some tendency to monopoly, which are popularly known as trusts. . . . We can do nothing of good in the way of regulating and supervising these corporations until we fix clearly in our minds that we are not attacking the corporations, but endeavoring to do away with any evil in them. We are not hostile to them; we are merely determined that they shall be so handled as to subserve [serve] the public good. We draw the line against misconduct, not against wealth. . . .

No more important subject can come before the Congress than this of the regulation of interstate business. . . . The power of the Congress to regulate interstate commerce is an absolute and unqualified grant, and without limitations other than those prescribed by the Constitution. The Congress has constitutional authority to make all laws necessary and proper for executing this power, and I am satisfied that this power has not been exhausted by any legislation now on the statute books. It is evident, therefore, that evils restrictive of commercial freedom and entailing restraint upon national commerce fall within the regulative power of the Congress, and that a wise and reasonable law would be a necessary and proper exercise of Congressional authority to the end that such evils should be eradicated. . . .

Source: President Theodore Roosevelt, Second Annual Message to Congress, December 2, 1902

31 Based on these documents, what is *one* historical circumstance surrounding the government regulation of business?

Score of 1:

- States a historical circumstance surrounding the government regulation of business, based on these documents

Examples: Standard Oil Company taking over many different aspects of business/smaller oil companies; big corporations/trusts doing interstate business often have some tendency to monopoly; corporations might have some evil/misconduct in them, which needs to be done away with; corporations need to serve public good; Congress has power to regulate interstate commerce except for limitations prescribed by Constitution; evils restrictive of commercial freedom/entailing restraint upon national commerce fall within regulative power of Congress

Score of 0:

- Incorrect response
Examples: small oil companies putting Standard Oil Company out of business; Congress has no power to regulate interstate commerce; the line must be drawn against wealth
- Vague response
Examples: message to present Congress; question discussed at length; nothing of good can be done; corporations need to be handled; make laws necessary and proper
- No response

Document 2

. . . I deny emphatically the assertion that opportunity has been restricted or individual effort stifled by reason of the growth of the trusts. On the contrary, the trusts have opened wider avenues and greater opportunities to the young men of to-day than those of any other generation ever enjoyed. In the old days, before the union of interests, murderous competition made any business venture precarious; but aside from that, through lack of time, opportunity, and capital, the young man was kept within a very restricted field. It is combination that has produced the capital to open up mines and factories, to build great industrial plants and the monster wholesale and retail establishments. It is combination and capital that have sent the railroads shooting in a hundred different directions all over the continent. . . .

Yes, decidedly, the opportunities for the young American boy are greater to-day than they have ever been before; and no boy, however lowly—the barefoot country boy, the humble newsboy, the child of the tenement—need despair. I see in each of them infinite possibilities. They have but to master the knack of economy, thrift, honesty, and perseverance, and success is theirs.

Source: J. D. Rockefeller, "Opportunity in America," *Cosmopolitan*, September 1, 1907

32 What is *one* reason John D. Rockefeller believed that trusts were good for the country?

Score of 1:

- States a reason John D. Rockefeller believed that trusts were good for the country, based on this document
Examples: growth of trusts has not restricted opportunity/stifled individual effort; trusts opened wider avenues/greater opportunities to young men of today than those of any other generation; before union of interests/murderous competition made business ventures precarious; before union of interests lack of time/opportunity/capital kept young men within very restricted field; combination produced capital to open up mines/factories/build great industrial plants/build monster wholesale/retail establishments/led to railroads being established in a hundred different directions all over continent; all young boys no matter how lowly have infinite possibilities/can find success

Score of 0:

- Incorrect response
Examples: growth of trusts restricted opportunity/stifled individual effort; trusts have limited opportunities for young men; mines/factories being closed; number of railroads decreasing
- Vague response
Examples: assertion emphatically denied; on the contrary; murderous competition; shooting in hundred different directions
- No response

Document 3

. . . Journalism and publicity played important roles in promoting the goals of the progressives, especially with regard to corruption in government and the monopolistic practices of business and industry. During the period, scores of articles appeared in magazines—revealing the truth, as the reformers saw it—about the way America was really ruled. Novels were also written to expose evil. The use of journalism to further a social cause was made possible by new magazines of mass circulation, a number of them counting their readers in the hundreds of thousands. Such magazines included *McClure's*, *Munsey's*, *Everybody's*, *Cosmopolitan*, *Collier's*, and the *American Magazine*. The men and women who wrote these articles were called muckrakers, although the name was applied some time after they began their work. It was applied to them in 1906 by Theodore Roosevelt who, while basically on their side, feared their revelations would get people too worked up and indignant. . . .

Source: Fon Boardman, *America and the Progressive Era, 1900–1917*, Henry Z. Walck, Inc., 1970

33 Based on this document, what was *one* effort made to address the government regulation of business?

Score of 1:

- States an effort made to address the government regulation of business, based on this document
Examples: journalism/publicity played important roles in promoting the goals of Progressives; Progressives promoted goals with regard to corruption in government/monopolistic practices of business/industry; scores of articles appeared in magazines about the way America really ruled according to reformers; novels written exposing evil; journalism used to further social cause; mass circulation of new magazines; number of new magazines counted readers in hundreds of thousands; new magazines included *McClure's*/*Munsey's*/*Everybody's*/*Cosmopolitan*/*Collier's*/*American Magazine*; work of muckrakers; Theodore Roosevelt basically supported muckrakers

Score of 0:

- Incorrect response
Examples: circulation of magazines decreased; Progressives/muckrakers became inactive; journalists opposed the goals of Progressives; Progressives opposed goals regarding corruption in government
- Vague response
Examples: important roles played; reformers saw it; social cause made possible; after they began their work; America really ruled
- No response

Document 4

The Northern Securities Company was a combination of three railroads that monopolized transportation in several western states. Theodore Roosevelt considered the company to be in violation of the Sherman Antitrust Act and, in 1904, the Supreme Court agreed.

. . . More sophisticated than most Progressives, Roosevelt recognized that the large corporation was a fact of modern economic life and that a general rise in the standard of living depended far more on increased productivity than on radical redistribution of existing wealth. Rather than follow the common Progressive line that by their nature all trusts were inherently evil, he divided them into “good” and “bad” trusts. If a trust was charging fair prices and offering good service, he favored allowing it to continue. If it was restraining trade and jacking up prices, then it was evil. The line was to be drawn on conduct, not bigness. Roosevelt and Roosevelt alone decided which trust was good and which was bad, however. Northern Securities, he decided, was bad—and should be broken up. Roosevelt also advocated selective prosecutions because the government did not have enough lawyers to prosecute all monopolies and because he realized that the conservatism of the courts would make all prosecutions difficult. . . .

Specifically, Roosevelt called for the establishment of a Bureau of Corporations in a Cabinet-level Department of Commerce to determine if regulation was warranted—a program he had advocated as governor of New York. The bureau would provide the president with information on the trusts, which he could at his own discretion make public and present to the Justice Department as a basis for indictments. . . .

Source: Nathan Miller, *Theodore Roosevelt: A Life*, William Morrow and Company, 1992

34 According to Nathan Miller, what was *one* effort made to address the government regulation of business?

Score of 1:

- States an effort made to address the government regulation of business, according to Nathan Miller

Examples: Supreme Court agreed with Theodore Roosevelt that Northern Securities Company in violation of Sherman Antitrust Act; recognition by Roosevelt that large corporations a fact of modern economic life/general rise in standard of living depended far more on increased productivity than on radical redistribution of existing wealth; Roosevelt divided trusts into “good” and “bad”; Roosevelt allowed trusts charging fair prices/offering good services to continue; Roosevelt labeled trusts “evil” if restraining trade/jacking up prices; Roosevelt drew line on conduct not bigness; Roosevelt and Roosevelt alone decided which trusts good and which were bad; Roosevelt decided Northern Securities should be broken up; Roosevelt advocated selective prosecutions of trusts because government lacked enough lawyers to prosecute all monopolies and conservatism of courts would make all prosecutions difficult; Roosevelt called for establishment of Bureau of Corporations in cabinet-level Department of Commerce; Bureau of Corporations would provide president with information on trusts; information on trusts could be made public at president’s discretion; president could present information to Justice Department as basis for indictments

Score of 0:

- Incorrect response

Examples: general rise in standard of living did not depend on increased productivity; Roosevelt labeled all trusts “bad”; Northern Securities one of the “good” trusts; all trusts prosecuted

- Vague response

Examples: Roosevelt advocated program as governor of New York; basis for indictments; more sophisticated than most Progressives; common Progressive line

- No response

Document 5

. . . Roosevelt's brand of progressivism put him foursquare in the middle of the national mood: for while people wanted change, they did not want radical change, and while Roosevelt's reforms were progressive, they were a *conservative* sort of progressivism that policed more by threat than by action (it was TR who declared the presidency as a "bully pulpit"), more by regulation than by prosecution, and used power more symbolically and rhetorically than in fact. In a very public confrontation, Roosevelt did prosecute John D. Rockefeller and J. P. Morgan, two of the most celebrated titans of American business, for their railroad monopoly in the Northwest; he righteously took the side of labor and the consumer in the great coal strike of 1902; and by 1906, two years after he had been elected in his own right, TR increased the pace of reform by creating standards for food and drugs, tackling the corruption in the meat industry (in response to novelist Upton Sinclair's best-selling *The Jungle*), and, in the cause that he perhaps held dearest, aggressively limiting development of public lands (he would double the number of national parks and establish fifty-one wild bird refuges). . . .

Source: Jennings and Brewster, *The Century*, Doubleday, 1998

35 Based on this document, what is *one* result of efforts to address the government regulation of business?

Score of 1:

- States a result of efforts to address the government regulation of business, based on this document
Examples: Roosevelt's reforms were a conservative sort of progressivism; Roosevelt's reforms policed more by threat than by action/more by regulation than prosecution/used power more symbolically/rhetorically than in fact; John D. Rockefeller/J.P. Morgan prosecuted in public confrontation by Roosevelt for railroad monopoly in Northwest; Roosevelt took side of labor/consumer in great coal strike of 1902; Roosevelt created standards for food and drugs/tackled corruption in meat industry/aggressively limited development of public lands; Roosevelt doubled number of national parks/established fifty-one wild bird refuges

Score of 0:

- Incorrect response
Examples: Roosevelt did not prosecute John D. Rockefeller/J.P. Morgan; Roosevelt took the side of the coal companies in the coal strike of 1902; aggressively sold public lands/limited number of national parks
- Vague response
Examples: brand of progressivism; middle of the national mood; people wanted radical change; public confrontation; Roosevelt held the cause dearest; elected in his own right
- No response

Document 6

. . . America's prosperity is built on hard work, open markets, and fair competition. But right now we're facing a monopoly problem as dominant digital platforms like Amazon increasingly use their power to increase prices, preference their own products and services, and harm small businesses. These anticompetitive practices are bad for consumers, entrepreneurs, and businesses, and I commend the Federal Trade Commission for taking action.

The case for reinvigorating competition policy and putting in place rules of the road for Big Tech companies is clear. I will continue to push for updates to the antitrust laws, including the bipartisan *American Innovation and Choice Online Act*, to strengthen our economy and make sure consumers can get the fair treatment they deserve.

Source: Senator Amy Klobuchar, Statement on the Antitrust Lawsuit Against Amazon, September 26, 2023

36 According to this document, what is *one* result of efforts to address the government regulation of business?

Score of 1:

- States a result of efforts to address the government regulation of business, according to this document
Examples: in 2023 America still facing monopoly problem; dominant digital platforms like Amazon increasingly use power to increase prices/preference own products/services/harm small businesses; use anticompetitive practices which is bad for consumers/entrepreneurs/businesses; Federal Trade Commission has taken action against Amazon; case for reinvigorating competition policy/putting in place rules of road for Big Tech companies clear; Senator Amy Klobuchar continues to push for updates to antitrust laws/ bipartisan *American Innovation and Choice Online Act* to strengthen the economy/make certain consumers get fair treatment they deserve; antitrust lawsuit brought against Amazon

Score of 0:

- Incorrect response
Examples: America has solved monopoly problem; Federal Trade Commission refuses to take action; antitrust laws have been eliminated; Senator Amy Klobuchar ended her push for updates to antitrust laws
- Vague response
Examples: America's prosperity built on hard work/open markets/fair competition; Big Tech companies are on a road; digital platforms used by Amazon
- No response